



NON DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (hereinafter referred to as the "Agreement") is made and entered into on this **28th day of January, 2025**

BY AND BETWEEN:

WebSeeder Technologies Private Limited, a company duly incorporated under the Companies Act, 2013 bearing CIN - U72900MP2023PTC064438 of the address 203 Navneet Plaza 5/2 Old Palasia, Greater Kailash Road above Fantasy Bakery, Indore, Madhya Pradesh, India, 452001.

AND

Sachin Kumar, an individual residing at k1 39 flat no 108 Budhvihar, Phase 1, Delhi (hereinafter referred to as the "Intern".

WHEREAS, the Intern will be engaged in an internship program with the Company, during which the Intern may have access to or may be exposed to confidential and proprietary information of the Company;

AND WHEREAS, the Company wishes to ensure that its confidential and proprietary information is protected from unauthorized disclosure or use;

NOW, THEREFORE, in consideration of the premises and mutual covenants contained herein, the parties hereto agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

1.1 For the purposes of this Agreement, "Confidential Information" shall mean any and all non-public information, including but not limited to:

- a) Trade secrets
- b) Proprietary software and algorithms
- c) Business plans and strategies
- d) Financial information and projections
- e) Customer and supplier lists
- f) Marketing and sales strategies
- g) Product development information
- h) Technical data and know-how
- i) Employee information
- j) Any other information marked as confidential or that should reasonably be understood to be confidential given the nature of the information and the circumstances of disclosure

1.2 Confidential Information may be in any form, including but not limited to written, electronic, visual, or oral.

2. INTERN'S OBLIGATIONS

2.1 The Intern agrees to:

- a) Hold all Confidential Information in strict confidence;
- b) Not disclose, distribute, reproduce, or allow access to the Confidential Information without the prior written consent of the Company;
- c) Use the Confidential Information solely for the purpose of fulfilling internship duties and not for any personal or other purpose;
- d) Take all reasonable precautions to prevent unauthorized access to or disclosure of the Confidential Information, including but not limited to:
 - i. Keeping all physical documents containing Confidential Information in a secure location
 - ii. Using password protection for all electronic files containing Confidential Information
 - iii. Not discussing Confidential Information in public places or with unauthorized persons
- e) Immediately notify the Company of any unauthorized use or disclosure of Confidential Information that comes to the Intern's attention.

3. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

3.1 The obligations set forth in this Agreement do not apply to information that:

- a) Was already known to the Intern prior to disclosure by the Company, as evidenced by the Intern's written records;
- b) Is or becomes publicly available through no fault or action of the Intern;
- c) Is independently developed by the Intern without use of or reference to the Confidential Information;
- d) Is rightfully obtained by the Intern from a third party without breach of any obligation of confidentiality.

4. OWNERSHIP OF CONFIDENTIAL INFORMATION

4.1 All Confidential Information remains the property of the Company.

4.2 No license or other rights to Confidential Information are granted to the Intern under this Agreement.

5. RETURN OF MATERIALS

5.1 Upon completion of the internship or at any time upon the Company's request, the Intern shall promptly:

- a) Return all tangible materials containing Confidential Information to the Company;
- b) Permanently delete all electronic copies of Confidential Information from personal devices and accounts;
- c) Provide written certification to the Company that all Confidential Information has been returned or destroyed as required.

6. TERM AND TERMINATION

6.1 This Agreement shall commence on the date first written above and shall continue in full force and effect during the internship and for a period of 5 years thereafter.

6.2 The obligations of confidentiality and non-use shall survive the termination of this Agreement.

7. REMEDIES

7.1 The Intern acknowledges that any breach of this Agreement may cause irreparable harm to the Company and agrees to pay a penalty of ₹ 200,000 (Two Lakh Rupees) for any such breach, in addition to any other legal or equitable remedies available to the Company.

7.2 In the event of a breach or threatened breach of this Agreement, the Company shall be entitled to seek injunctive relief in addition to any other remedies available at law or in equity.

8. GOVERNING LAW AND JURISDICTION

8.1 This Agreement shall be governed by and construed in accordance with the laws of Madhya Pradesh/ Indore, without regard to its conflict of law provisions.

8.2 Any disputes arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts of Madhya Pradesh/ Indore.

9. MISCELLANEOUS

9.1 This Agreement constitutes the entire understanding between the parties with respect to the subject matter hereof and supersedes all prior agreements, written or oral.

9.2 This Agreement may not be amended except in writing signed by both parties.

9.3 If any provision of this Agreement is found to be unenforceable, the remainder shall be enforced as fully as possible and the unenforceable provision shall be deemed modified to the limited extent required to permit its enforcement in a manner most closely representing the intention of the parties as expressed herein.

9.4 The Intern may not assign or transfer any rights or obligations under this Agreement without the prior written consent of the Company.

IN WITNESS WHEREOF, the parties hereto have executed this Non-Disclosure Agreement as of the date first above written.

SIGNATURES



Anurag Kumar Prasad
(Director & CEO)
Webseeder Technologies Pvt Ltd

Sachin

Sachin Kumar
(Intern)

28-01-2025